

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index Number:
Date Purchased:

-----X
ISAIAH ROBINSON,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

The basis of venue is:
Place of Occurrence

CITY OF NEW YORK, POLICE OFFICER
SAMUEL HUI, POLICE OFFICER SCHUMACHER
and JOHN DOE AND JANE DOE #1-4 (the names John
and Jane Doe being fictitious as their true names are
presently unknown),

SUMMONS

Defendants.
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action by filing same at the Kings County Supreme Court located at Supreme Court Building, 360 Adams Street, Brooklyn, New York 11201 and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a notice of appearance, on the plaintiff within 20 (twenty) days after the service of this summons, exclusive of the day of service (or within 30 (thirty) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to answer or appear, judgment will be taken against you by default for the relief demanded in the Complaint annexed herewith.

Dated: Brooklyn, New York
August 2, 2019

LAW OFFICE OF PHILIP AKAKWAM, P.C.

By:


Philip Akakwam
Attorneys for Plaintiff
303 Livingston St., 2nd Floor
Brooklyn, NY 11217
(718) 858-2488

To: City of New York
Corporation Counsel
100 Church Street
New York, NY 10007

P.O. Samuel Hui
75th Precinct
1000 Sutter Ave.
Brooklyn, NY 11208

P.O. Schumacher
75th Precinct
1000 Sutter Ave.
Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ISAIAH ROBINSON,

Index No.:

Plaintiff

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, POLICE OFFICER
SAMUEL HUI, POLICE OFFICER SCHUMACHER
and JOHN DOE AND JANE DOE #1-4 (the names John
and Jane Doe being fictitious as their true names are
presently unknown),Defendants
-----X

Plaintiff, Isaiah Robinson, by his attorneys, Law Office of Philip Akakwam, P.C., as and for his Complaint against City of New York, P.O. Samuel Hui, P.O. Schumacher and John Doe and Jane Doe #1-4, respectfully alleges as follows, upon information and belief:

NATURE OF THE ACTION

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. §§ 1983 and 1985 (3), and the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and the laws and statutes of the City and State of New York. This case arose from an incident which occurred on or about May 17, 2018 during which members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, unlawful search, false arrest, assault, use of excessive force, retaliation for free speech, abuse of process, malicious prosecution and harassment.

NOTICE OF CLAIM

2. Plaintiff has complied with General Municipal Law Section 50 and all procedural requirements necessary to commence a lawsuit against defendants, including Defendant City of

New York.

3. This is an action for physical injuries, loss of freedom, and past and future medical expenses, among other things, sustained by plaintiff arising out of the actions perpetrated by defendants on May 17, 2018.

4. On July 19, 2018, within ninety days after the accrual of the instant action, a Notice of Claim was filed with Defendant City of New York, and/or it's agents, on behalf of plaintiff.

5. On July 12, 2019, plaintiff appeared for, and testified at, a hearing pursuant to Section 50(h) of the General Municipal Law of New York at the request of Defendant City of New York and/or its agent(s).

6. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

7. This action has been commenced within one year and ninety days after the happening of the event(s) upon which the claim(s) is based.

THE PARTIES

8. Plaintiff is, and was at all times material herein, a resident of the County of Queens, State of New York.

9. Defendant City of New York is a municipal entity existing under the laws and Constitution of the State of New York and was the public employer of the defendant officers through its Police Department and the actions of the police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

10. Defendant P.O. Samuel Hui [Shield # 28856] was at all times material herein a police officer employed by defendant City of New York. He is named here in his official and

individual capacities.

11. Defendant P.O. Schumacher was at all times material herein a police officer employed by defendant City of New York. He is named here in his official and individual capacities.

12. Upon information and belief and at all times relevant herein, defendants John Doe and Jane Doe # 1-4 were individuals and/or officers employed by defendant City of New York. They are named here in their individual and official capacities.

13. Defendants P.O. Samuel Hui, P.O. Schumacher and John Doe and Jane Doe # 1-4 are collectively referred to herein as "defendant officers".

14. At all times relevant herein, the defendant officers acted toward plaintiff under color of the statutes, ordinances, customs, and usage of the State and City of New York.

15. The defendant officers were, at all times relevant herein, acting within the scope of their employment by Defendant City of New York.

FACTUAL ALLEGATIONS

16. On or about May 17, 2018, at approximately 3:30 a.m., plaintiff was subjected to illegal searches and seizures, was falsely arrested, falsely imprisoned, and endured excessive force at the hands of the defendant officers on Fountain Avenue and Dumont Street, Brooklyn.

17. At the aforementioned time and place, plaintiff was a passenger in a vehicle driven by his friend James Grave; there were also two female passengers sitting in the rear seats of the vehicle.

18. Plaintiff and his friends were returning from a club and had stopped at a store to buy some snacks and juice. After getting the items from the store, plaintiff and his friends drove off and made a right turn onto Fountain Avenue.

19. Upon making a turn unto Fountain Avenue, plaintiff and his friends were pulled over by the defendant officers. When the officers approached plaintiff's vehicle, plaintiff's friend James Grave asked the officers the reason for pulling them over.

20. One of the officers told Mr. Graves that he had double-packed at his previous stop and had failed to use his turning signal.

21. Mr. Graves told the officers that he did not double park and that he had his turning signals on while making the turn.

22. The officers asked Mr. Grave for his license and the vehicle papers. Mr. Grave provided them with his license and registration.

23. Without even running the license, the officers ordered Mr. Grave out of the vehicle.

24. Mr. Graves asked the officers why he was being ordered out of his vehicle instead of being given a ticket if they believed he made a turn without a signal or double-packed.

25. The officers insisted that Mr. Graves must get out of the vehicle. He complied after arguing that the alleged infractions warranted only a ticket.

26. Plaintiff started recording the incident on his cell phone.

27. Then, two of the officers went over to the front passenger side of the vehicle and ordered plaintiff to roll down the vehicle window. Plaintiff complied.

28. As plaintiff was recording the incident on his cell phone, one of the officers knocked the phone out of plaintiff's hand.

29. Then the officer put his hand in the window and opened the passenger door and ordered plaintiff to exit the vehicle.

30. After asking why he was being told to get out of the vehicle, plaintiff complied by

getting out of the vehicle.

31. As plaintiff got out of the vehicle, the officers grabbed and slammed him on the muddy ground and cuffed him.

32. The officers pounced on plaintiff as he was on the ground. They kneed him on the neck, back and on his legs; they hit and kicked him on various parts of his body. About five officers physically assaulted plaintiff.

33. The defendant officers searched plaintiff and found no weapons or contraband on him.

34. After finding no weapons or contraband on plaintiff's person (or his friends), the defendant officers then searched the vehicle without stating what they were looking for, without probable cause, and without a warrant. No contraband was found in the vehicle.

35. Even though no weapons or contraband was found on plaintiff, defendant officers arrested plaintiff and took him to the 75th precinct.

36. While being transported to the precinct, plaintiff told the defendant officers that he was injured, feeling pain and wanted be taken to the hospital for treatment, but defendant officers ignored his request.

37. At the precinct, plaintiff continued to ask to be taken to the hospital for treatment, but the officers ignored him for many hours until the following day when he was taken to Long Island College Hospital, Brooklyn.

38. Plaintiff was subsequently charged with Obstructing Governmental Administration, among other charges. He was detained for about two (2) weeks before he was released.

39. Following his release, plaintiff was required to appear in court on numerous

occasions to defend the charges until May 8, 2019 when all the charges were finally dismissed.

40. That each and every officer who was present at the location of plaintiff's arrest knew and was fully aware of the assault, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.

41. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.

42. Plaintiff suffered physical injuries, including but not limited to disc herniation, injuries to the back, shoulder, knee and hip.

43. And plaintiff suffered and continues to suffer emotional distress, fear, humiliation, embarrassment, shock, loss of liberty, psychological trauma, pain, and damage to reputation as a consequence of the defendants' unlawful conduct alleged herein.

44. This action falls within one or more of the exemptions set forth in CPLR §1602.

FIRST CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS - FALSE ARREST & IMPRISONMENT
As Against the Defendant Officers

45. Plaintiff reiterates paragraphs 1 through 44 and incorporates such by reference herein.

46. Under the Constitution of the United States and 42 U.S.C. 1983, plaintiff has a right to be free from unreasonable and illegal searches and seizures.

47. The defendant officers violated plaintiff's right when they arrested and confined plaintiff, who was conscious at the time, without consent, justification, privilege or probable cause.

48. The defendant officers' action caused injuries to plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

49. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS - USE OF EXCESSIVE FORCE
As Against the Defendant Officers

50. Plaintiff reiterates paragraphs 1 through 49 and incorporates such by reference herein.

51. Under the Constitution of the United States and 42 U.S.C. 1983, plaintiff has a right to be free from brutal police conduct and the application of undue or excessive force during the course of an arrest.

52. The defendant officers violated plaintiff's rights when they violently slammed him on the muddy ground, pounced on him, kneed him on his neck and back, punched and kicked him while he was on the ground and in handcuffs.

53. The defendant officers' action caused injuries to plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

54. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS - FAILURE TO INTERVENE
As Against the Defendant Officers

55. Plaintiff reiterates paragraphs 1 through 54 and incorporates such by reference herein.

56. Under the Constitution of the United States and 42 U.S.C. 1983, police officers

have an affirmative duty to protect the constitutional rights of citizens by intervening during the unlawful use of excessive force by other police officers in their presence.

57. The defendant officers violated plaintiff's constitutional rights when, in their presence, officers violently slammed plaintiff into the muddy ground, punched and kicked plaintiff, yet did not intervene to protect plaintiff.

58. The defendant officers violated plaintiff's constitutional rights when, in their presence, Defendant Police Officer Hui placed plaintiff's handcuffs on him in an unreasonably tight manner, yet did not intervene to protect plaintiff.

59. The defendant officers violated plaintiff's constitutional rights when, in their presence, another police officer refused to aid plaintiff when he complained that handcuffs had been placed on him in an unreasonably tight manner, yet did not intervene to protect plaintiff.

60. The defendant officers' (in)actions caused injuries to plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

61. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS - UNLAWFUL SEARCH & SEIZURE
As Against the Defendant Officers

62. Plaintiff reiterates paragraphs 1 through 61 and incorporates such by reference herein.

63. Under the Constitution of the United States and 42 U.S.C. 1983, plaintiff has a right to be free from unreasonable searches and seizures.

64. The defendant officers violated plaintiff's rights by asking him to get out of the vehicle and searching his person for contraband without consent, justification, or probable cause to believe that plaintiff had a contraband on his person.

65. The defendant officers' actions caused injuries to plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

66. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS - MALICIOUS PROSECUTION
As Against the Defendant Officers

67. Plaintiff reiterates paragraphs 1 through 66 and incorporates such by reference herein.

68. Under the Constitution of the United States and 42 U.S.C. 1983, plaintiff has a right to be free from malicious prosecution.

69. The defendant officers violated plaintiff's rights when they subjected plaintiff to malicious prosecution and malicious abuse of the criminal process in violation of his right under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

70. The defendant officers' actions caused injuries to plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

71. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION
FAILURE TO TRAIN/SUPERVISE/DISCIPLINE AND MUNICIPAL POLICY
As Against Defendant City of New York

72. Plaintiff reiterates paragraphs 1 through 71 and incorporates such by reference herein.

73. Defendant City of New York, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when there is probable cause for such arrest. In addition, defendant City had actual and/or de facto policies, practices, customs and/or usages of failing to properly screen its prospective police officers for mental fitness, history of misconduct, good moral character and propensity for violence.

74. Defendant City of New York, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in drugs, guns and/or other illicit activities.

75. The defendant City has been on notice for a long period of time that brutality is widespread and that particular reforms need to be implemented. Acts of brutality have been tolerated by the defendant City.

76. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.

77. In its report of investigations (“report”) into NYPD use of force dated October 1, 2015, the New York City Department of Investigations, Office of the Inspector General for the NYPD, (“DOI”) concluded that “[h]istorically, NYPD has frequently failed to discipline officers who use force without justification.” Police Use of Force in New York City: Findings and Recommendations on NYPD’s Policies and Practices, at 2-3, http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_ooc_1_2015.pdf.

78. Additionally, DOI concluded that “NYPD’s current use-of-force policy is vague and imprecise, providing little guidance to individual officers on what actions constitute force.” *Id.* at 3.

79. Further, DOI concluded that “NYPD lacks a Uniform Policy on Reporting Force Incidents” and determined that NYPD training is inadequate and that more focused training is required. *Id.* at 23, 39-44.

80. Defendant City has settled numerous lawsuits brought in this District against several NYPD officers alleging use of force incidents and similar charges as those described herein.

81. The defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff’s injuries as described herein.

82. Prior to and at the time of the incident alleged herein, the defendant City was aware of the need for more or different training, rules, regulations, investigation and discipline relating to police officers engaged in racial profiling, use of excessive force in the course of arrest and was deliberately indifferent to that need.

83. As a direct and proximate result of the Defendant City's policies and deliberate indifference, defendants violated plaintiff's constitutional rights causing plaintiff to suffer substantial damages.

SEVENTH CAUSE OF ACTION
NEW YORK STATE CONSTITUTION, ARTICLE 1, §§ 5, 6, 8, 11 & 12
As Against Defendants

84. Plaintiff reiterates paragraphs 1 through 83 and incorporates such by reference herein.

85. By arresting, detaining and prosecuting plaintiff without probable cause or reasonable suspicion and assaulting plaintiff, the defendant officers, deprived plaintiff of rights, remedies, privileges and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York State Constitution.

86. In addition, the defendant officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

87. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Such acts by Defendant Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by Article 1,

Section 12 of the New York State Constitution.

88. Defendants, their officers, attorneys, agents, servants and employees were responsible for deprivation of Plaintiff's State Constitutional rights. Defendant City, as employer of each of the defendant officers, is responsible for their wrongdoing under the common law doctrine of *respondeat superior*.

89. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHT CAUSE OF ACTION
TORTS - FALSE ARREST/IMPRISONMENT
As Against Defendants

90. Plaintiff reiterates paragraphs 1 through 89 and incorporates such by reference herein.

91. At all times relevant herein, the defendant officers intentionally arrested, confined and imprisoned plaintiff without probable cause, without justification, and without consent.

92. The defendant officers' actions caused injuries to plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

93. The defendant officers took the aforementioned actions against plaintiff during the course, and within the scope, of employment with defendant City of New York.

94. The defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the defendant officers, taken against plaintiff during the course, and within the scope, of employment with defendant City of New York.

95. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually

and severally.

NINTH CAUSE OF ACTION
TORTS - ASSAULT AND BATTERY
As Against Defendants

96. Plaintiff reiterates paragraphs 1 through 95 and incorporates such by reference herein.

97. By their conduct, as set forth above, defendant officers committed acts of battery against plaintiff which included violently slamming him on the ground, punching and kicking him, among other things, without cause. The use of physical force against plaintiff was willful, unwarranted, and excessive.

98. The defendant City is responsible for the unnecessary force used by the defendant officers as set forth above because the misconduct occurred while they were acting in the scope of their employment, specifically in the course of arresting plaintiff.

99. By reason of and as a consequence of the assault detailed above, plaintiff suffered physical and mental injuries.

100. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TENTH CAUSE OF ACTION
TORTS - MALICIOUS PROSECUTION
As Against Defendants

101. Plaintiff reiterates paragraphs 1 through 100 and incorporates such by reference herein.

102. Based on the false testimony of defendants, the prosecutors initiated criminal actions against plaintiff.

103. Plaintiff was required to, and did, appear in court to defend himself from the false charges levied against him with malice by defendants.

104. On May 8, 2019, all the criminal charges levied against plaintiff were dismissed.

105. Because of the conduct of the defendants, plaintiff was maliciously prosecuted for a lengthy period of time.

106. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

ELEVENTH CAUSE OF ACTION
TORTS - USE OF EXCESSIVE FORCE
As Against Defendants

107. Plaintiff reiterates paragraphs 1 through 106 and incorporates such by reference herein.

108. The defendant officers had a duty to plaintiff to use reasonable force and avoid the application of excessive and unreasonable force during his arrest.

109. The defendant officers had a further duty to exercise the degree of care which would reasonably be required of a police officer under similar circumstances.

110. The defendant officers breached this duty when one or more of the defendant officers violently slammed plaintiff on the muddy ground, pounced on him, kned him on his neck and back, punched and kicked him while he was on the ground and in handcuffs.

111. The defendant officers knew or should have known that their actions could/would cause plaintiff's injuries.

112. The defendant officers' actions caused injuries to plaintiff, including physical injuries, loss of freedom, and past and future medical expenses, among other things.

113. The defendant officers took the aforementioned actions against plaintiff during the course, and within the scope, of employment with defendant City of New York.

114. The defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the defendant officers, taken against plaintiff during the course, and within the scope, of employment with defendant City of New York.

115. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TWELFTH CAUSE OF ACTION
TORTS - UNREASONABLE SEARCH AND SEIZURE
As Against Defendants

116. Plaintiff reiterates paragraphs 1 through 115 and incorporates such by reference herein.

117. The conduct of the defendants, as described herein, amounted to degrading, humiliating and unreasonable search and seizure, and unreasonable detention.

118. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION AND
RETENTION OF EMPLOYMENT SERVICES
As Against Defendant City

119. Plaintiff reiterates paragraphs 1 through 118 and incorporates such by reference herein.

120. Upon information and belief, defendant City, through its various agencies and

departments including the defendants in this action, owed a duty of care to plaintiff to prevent the physical and mental abuse sustained by plaintiff.

121. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff or to those in a like situation would probably result from such conduct described herein.

122. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.

123. Upon information and belief, defendant City's negligence in hiring, training, supervising and retaining defendant officers proximately caused plaintiff's injuries.

DAMAGES

124. That by reason of the foregoing, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the Defendants as follows:

- i. For compensatory damages in an amount to be determined at trial - against all defendants, jointly and severally;
- ii. For punitive damages against the individual defendants in an amount to be determined at trial;
- iii. For reasonable attorneys' fees, together with costs and disbursements of this action, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;
- iv. For pre-judgment interest as allowed by law; and

v. For such other and further relief as the court deems just and proper.

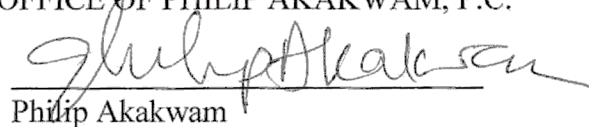
DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury.

Dated: Brooklyn, New York
August 2, 2019

LAW OFFICE OF PHILIP AKAKWAM, P.C.

By:



Philip Akakwam

Attorneys for the Plaintiff

303 Livingston St., 2nd Floor

Brooklyn, N.Y. 11217

(718) 858-2488

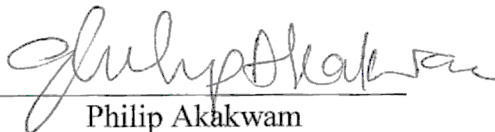
ATTORNEY'S VERIFICATION

PHILIP AKAKWAM, an attorney duly admitted to practice law in the State of New York, under penalties of perjury, affirms the following:

That deponent is the attorney for the plaintiff in the above entitled action with offices located at 303 Livingston Street, 2nd Floor, Brooklyn, Kings County, New York; that deponent has read the foregoing Complaint and knows the contents thereof; that the same is true to deponent's knowledge, except as to the matters stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

That the reason why this verification is made by deponent instead of the plaintiff is because the plaintiff does not reside within Kings County, which is the county where deponent has his office. Deponent further says that the grounds of his belief as to all matters in the complaint not stated to be upon deponent's knowledge are based upon conversations with plaintiff and review of correspondence and other writings furnished by the plaintiff.

Dated: Brooklyn, New York
August 2, 2019


Philip Akakwam